

25STCV31213 25STCV31213

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 25STCV31213 Hearing Date: July 15, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 15, 2026

Case Name: Conner v. Kilroy Realty Corporation, et al.

Case No.: 25STCV31213

Matter: Motion to Strike

Moving Party: Defendants Kilroy Realty Corporation, KR Vine, LLC, Kilroy Realty, L.P.,

and Greystar California, Inc.

Responding Party: Plaintiff Madison Conner

Notice: OK

Ruling: The Motion to Strike is granted, with 20 days leave to amend.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA

CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is a slip-and-fall case.

Defendants Kilroy Realty Corporation, KR Vine, LLC, Kilroy Realty, L.P., and Greystar California, Inc. now seek to strike the Complaint's references to punitive damages.

Motions to strike are used to challenge defects in the pleadings not subject to demurrer. Any party may move to strike the whole or any part of a pleading within the time allotted to respond to the pleading. (Code Civ. Proc. § 435(b)(1).) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the Court is required to take judicial notice. (Id. § 437(a).) The Court may strike out any irrelevant, false, or improper matter inserted in any pleading, and strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id. § 436.) An "irrelevant" matter includes any "demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint." (Id. § 431.10(b)(3), (c); see also *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1036-1042.)

Punitive damages are available when the plaintiff establishes oppression, fraud, or malice by clear and convincing evidence. (Civ. Code § 3294(a).)

Malice means "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code § 3294(c)(1).) In this context, despicable conduct is conduct considered "so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (*Scott v. Phoenix Schools, Inc.* (2009) 175 Cal.App.4th 702, 715, internal quotation marks omitted.) Oppression means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294(c)(2).) Fraud means "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Id. § 3294(c)(3).)

"As nonintentional torts support punitive damages when the defendant's conduct 'involves conscious disregard of the rights or safety of others,' our focus is on malice and oppression." (*Pfeifer v. John Crane, Inc.* (2013) 220 Cal.App.4th 1270, 1299.)

"[M]alice does not require actual intent to harm. (Id. at p. 895, 157 Cal.Rptr. 693, 598 P.2d 854.) Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences. (Id. at pp. 895–896, 157 Cal.Rptr. 693, 598 P.2d 854.) Malice may be proved either expressly through direct evidence or by implication through indirect evidence from which the jury draws inferences." (*Angie M. v. Superior Ct.* (1995) 37 Cal.App.4th 1217, 1228.)

The Complaint merely indicates that Defendants would power-wash the residential premises on a weekly basis without placing warning signs that the area was wet. This does not constitute malice or oppression.

The Motion to Strike is granted, with 20 days leave to amend.

Moving party to give notice.